

Operational Policy

Policy title:	HIPAA: Notice of Privacy Practices		
Policy number:	ODHS OHA 100-002		
Original date:	09/20/2013 (OHA only)	Last update:	(Joint ODHS OHA) 01/10/2022
Approved:	Kris Kautz, Deputy Director Oregon Health Authority Don Erickson, Chief Administrative Officer Oregon Department of Human Services		

Purpose

This Health Insurance Portability and Accountability Act (HIPAA) policy is one of a series that outlines Oregon Department of Human Services (ODHS) and Oregon Health Authority (OHA) expectations for the necessary collection, use, and disclosure of protected health information (PHI) about individuals in order to provide services and benefits while maintaining reasonable safeguards to protect the privacy of their information.

ODHS|OHA workforce should review all ODHS|OHA privacy policies to be sure they understand how these policies work together to protect individual privacy.

Description

This policy describes an individual's right to receive a Notice of Privacy Practices (NPP).

Applicability

This policy applies to all OHA staff (see OAR 943-014-0015) and ODHS staff working in Business Associate programs (see ODHS 100-013) including employees, volunteers, interns and contractors. This definition of staff aligns with the HIPAA definition of workforce.

As keepers of the public trust, ODHS|OHA workforce has a responsibility to comply with state and ODHS|OHA policies, administrative rule, and state and federal law. ODHS|OHA take this responsibility seriously and failure to fulfill this responsibility is not treated lightly. Workforce who fail to comply with state or agency policy, administrative rule, or state and federal law may face progressive discipline, up to and including dismissal from state service.

Policy

1. ODHS|OHA shall make available to every individual applicant for service a Notice of Privacy Practices (NPP) describing the responsibility of ODHS|OHA to maintain the privacy of protected health information (PHI).
2. The NPP shall include clear information to inform the individual about the types of uses and disclosures of PHI ODHS|OHA is permitted or required to make.

- a. ODHS|OHA shall provide all individuals an NPP in direct care settings when they first receive care and request the individual's signature on form MSC 2092.
 - b. Any change or revision to the NPP shall be in collaboration with the Information Security and Privacy Office.
 - c. Any changes to the NPP apply to information already collected as well as any information ODHS|OHA receives in the future.
 - d. If the notice is revised, all former notices must be kept for six (6) years.
 - e. ODHS|OHA shall prominently post a copy of the NPP for public viewing at each ODHS|OHA worksite and on the individual ODHS|OHA websites.
 - f. Upon request, ODHS|OHA shall provide a copy of the NPP to any person in the format requested.
3. If the ODHS|OHA policy conflicts with federal or state statute or rule, that statute or rule supersedes unless the ODHS|OHA policy provides more protection.

References

[45 CFR 160 General Administrative Requirements](#)

[45 CFR 164 Security and Privacy](#)

[OAR 943-014-0015 Covered Entity Status for Purposes of the HIPAA Privacy Rules](#)

Form(s)

[MSC 2092 ODHS|OHA Notice of Privacy Practices, Acknowledgment of Receipt form](#)

[MSC 2093 Request for Access to Records](#)

[MSC 2095 Request for Restriction of Use and Disclosures](#)

Policies

[DHS 100-003 Uses and Disclosures of Individual Information](#)

Contact

Information Security and Privacy Office (ISPO)

Phone: 503-945-5780 (Privacy)

privacyoffice@odhsoha.oregon.gov

U. S. Department of Health and Human Services, Office for Civil Rights

Medical Privacy, Complaint Division

200 Independence Avenue, SW

Washington, D.C. 20201

Toll free Phone: 877-696-6775

Phone: 866-627-7748

TTY: 866-788-4989

Email: <mailto:OCRComplaint@hhs.gov>

Policy History

Version 1.0 OHA 100-002 established 07/22/2014

Version 2.0 Reviewed 10/03/2016

Version 3.0 ODHS|OHA 100-002 established 01/10/2022

Keywords

Disclosure, Health Insurance Portability and Accountability Act, HIPAA, Notice of Privacy Practices, NPP, privacy

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